

SENATE No. 280

The Commonwealth of Massachusetts

PRESENTED BY:

Jacob R. Oliveira, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to protect horses.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Steve Baer</i>		
<i>Evan Halstead</i>		<i>1/21/2025</i>
<i>Libby Frattaroli</i>		<i>1/22/2025</i>
<i>Pamela Mazzuchelli</i>		<i>1/22/2025</i>
<i>Elena Tillman</i>		<i>1/22/2025</i>
<i>Sheryl Becker</i>		<i>1/22/2025</i>
<i>Carolyn Roux</i>		<i>1/22/2025</i>
<i>Cindy Gingrich</i>		<i>1/22/2025</i>
<i>Deirdre Healy</i>		<i>1/22/2025</i>
<i>Larry Vidoli</i>		<i>1/22/2025</i>
<i>Cheryl Hopkins</i>		<i>1/22/2025</i>
<i>Denise Tetrault</i>		<i>1/22/2025</i>
<i>Pam Youngquist</i>		<i>1/22/2025</i>
<i>John Calabria</i>		<i>1/22/2025</i>
<i>Wendy Hollis</i>		<i>1/22/2025</i>
<i>Kimberlee Clark</i>		<i>1/22/2025</i>
<i>Ann-Elizabeth Barnes</i>		<i>1/22/2025</i>
<i>Richard Meyers</i>		<i>1/22/2025</i>

SENATE No. 280

By Mr. Oliveira (by request), a petition (accompanied by bill, Senate, No. 280) of Steve Baer, , Evan Halstead, , Libby Frattaroli, , Pamela Mazzuchelli, and others for legislation relative to the treatment and protection of horses in the racing industry. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to protect horses.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Preamble:

2 Consistent with concerns leading to Chapter 272 Section 77 regarding the treatment of
3 horses, horse racing must cease.

4 Chapter 272 Section 77 explicitly prohibits the “overdriving (forced horse track racing
5 subjects horses to the physical and psychological conditions for overdriving them to run at
6 breakneck speeds), tormenting, depriving of necessary sustenance (horses are deprived of food
7 and water for track racing convenience), cruelly beating (the cruel public beating that a horse
8 receives would land the abuser in jail if performed upon a dog), using in an inhumane manner in
9 a race, game or contest” (knowledgeable equine veterinarians have stated that horses are obligate
10 nose breathers who under racing conditions with bits in their mouths are unable to breath
11 effectively and are slowly suffocating; it is also self-evident that horses are used as a lure or bait

at their peril to attract uncaring or predatory betters)... “and whoever, [...] having the charge or custody of an animal (a horse is an animal), cruelly drives or works it when unfit for labor (horses used in track racing are exclusively juvenile 2 to 4 year old horses whose musculoskeletal systems have not completely developed. Their bones will not be done fusing and their tendons and muscles will not be fully developed until they are at least six years old. This results in them often breaking bones, tearing tendons and ripping muscles. As a result they become structurally worn out, severely injured, or mortally injured), [...] or knowingly and willfully authorizes or permits it to be subjected to unnecessary torture, suffering or cruelty of any kind (horses used in track racing experience lung bleeds as a result of being forced to race; they tend to develop stomach ulcers due to the psychological stress of being isolated in stalls or being forced to race; the process of preparing a horse for racing called ‘breaking’ involves physical and psychological trauma; and knowing that a significant number of horses that are forced to race suffer physically debilitating or deadly injuries, and will lead tortured lives or be murdered as a result of track racing acknowledges unnecessary torture, suffering or cruelty of Ch.272, S.77) [...]”

Be It Enacted

With Regard to Horses

1. Notwithstanding the provisions of Chapter 128A or any general or special law to the contrary, no horse racing or racing meeting where any form of betting or wagering on the speed or ability of horses occurs shall be conducted or permitted in the Commonwealth of Massachusetts and the Gaming Commission is hereby prohibited from accepting or approving any application request for racing dates for horse racing.

2. All other provisions of Chapter 128A shall be construed as if they contain no references to horses, horse racing, or horse races.

3. Other than the racing licensee in Norfolk County as of January 1, 2024, there shall be no racing of animals for speed in the Commonwealth with or without wagering.

Notwithstanding any general or special law to the contrary, the effective date of this section shall be January 1, 2027.

With Regard to Licenses

1. No racing meeting licensee, including licensees holding racing meetings in connection with State or county fairs as defined in Chapter 128A Section 1 shall simulcast or accept a wager on running horse / thoroughbred racing. No incentive shall be allowed for the perpetuation of any Gaming Commission licensee to develop and operate a facility or location that races any running horse / thoroughbred.

2. Effective immediately and notwithstanding Chapter 128A, Chapter 128C, or Chapter 28K:

(a) no running horse / thoroughbred horse racing license application shall be considered or approved by the Massachusetts Gaming Commission;

(b) no new racing license application for a new operator for harness racing shall be considered or approved by the Massachusetts Gaming Commission;

(c) no new simulcasting license other than those in existence on January 1, 2024 shall be considered or approved by the Massachusetts Gaming Commission.

54 3. With exception for a renewal application by the racing licensee in Norfolk County
55 as of January 1, 2024, no further application for a racing license shall be accepted or granted by
56 the Massachusetts Gaming Commission.

57 (a) The Norfolk County licensee shall only ever be approved for harness racing, and
58 never for a running horse / thoroughbred horse track.

59 4. Chapter 180 Section 14 is hereby repealed.

60 If any part of this law is found to be invalid or unenforceable, the remaining parts of the
61 law will still be valid and enforceable.